NewsBank inc.

Newsom's $50 million legal aid should bar undocumented criminals. This bill codifies it | Opinion

March 12, 2025 | Fresno Bee, The: Web Edition Articles (CA)
Author: Juan Esparza Loera, Fresno Bee | Section: opinion | 757 Words
OpenURL Link

Gov. Gavin Newsom

convinced fellow Democrats to cough up $50 million - split evenly between the state Department of Justice and to organizations that provide legal aid - to protect undocumented residents who might get caught in President Donald Trump's deportation web.

The governor signed Senate Bills 1 and 2, which allocates legal services for immigrants and other vulnerable Californians. In the process, Newsom gifted an opening as wide as the Pacific Ocean to California Republicans, who don't have enough members to make sure those accused of felony crimes did not benefit from the state's desire to shield the roughly 1.8 million undocumented immigrants currently residing in the state.

Opinion label

"None of the funding in this bill is intended to be used for immigration-related legal services for noncitizens convicted of serious or violent felonies," Newsom declared when he signed the legislation on Feb. 7 . "To the extent further clarification is necessary, I encourage the Legislature to pass subsequent legislation."

That was enough for freshman Assemblymember Leticia Castillo

, R- Corona , to respond with legislation that meets the governor's threshold by defining the types of criminals that will be banned from accessing legal help.

"If we fail to act, we risk creating loopholes that will allow convicted felons to … continue to harm the citizens of our state through (the) misguided empathy of organizations," she said while introducing her legislation, Assembly Bill 1066, which has yet to be heard.

Republicans , who are powerless to pass any legislation on their own against a Democratic supermajority in the state Assembly and Senate , had unsuccessfully battled to include a definition of ineligible undocumented residents in the original bills.

Now, Castillo and her Republican colleagues have some momentum on their side thanks to Newsom's suggestion and Democratic legislators like Assemblymember Jesse Gabriel

, D- San Fernando Valley , who said pro-bono services in SB 1 and 2, which he co-sponsored, were not intended for those with serious or violent felony records.

OK, put that in writing.

Deport the criminals

Trump won his second presidential term on a campaign promise to carry out "the largest deportation in the history of our country." Trump and his Department of Homeland Security have vowed to find and deport "criminal aliens."

The White House has published a list of some of those criminals who have been deported, including a Salvadoran national and MS-13 gang member convicted of aggravated assault with bodily injury in Texas ; a Honduran national

convicted of criminal sexual conduct with a minor in Minnesota ; and a Mexican national convicted of sexual exploitation of a child in San Francisco .

The list also includes individuals who have been charged but not convicted of crimes under the recently enacted Laken Riley Act, which requires the Department of Homeland Security to detain illegal immigrants convicted of certain crimes.

The cries against deportation efforts, raised by elected officials and pro-immigrant voices, have boiled down to: Deport the criminals, but not the hard-working individuals who contribute to the economy.

"We 100% support the arrest and prosecution of the people that are hurting our own community," said Fresno County Supervisor Luis Chávez

at a January press conference. "But what we're asking (Customs and Border Protection), what we're asking our federal authorities, is to be cognizant so that they don't have collateral damage; so that you don't pick up the mom and dad that are going to work in the food processing plant or a packing house."

Rep. Jim Costa

, D- Fresno , said at the same conference that he supports "getting bad people off the streets."

"But mass deportation reflects a different notion, and breaking families up is not the American way," Costa said.

And, meanwhile, Rep. David Valadao

, R- Hanford , said in a January statement that "we can all agree known criminals should be expelled from the United States , but it is crucial that future (deportation) operations are communicated clearly to avoid causing any further alarm among our farmworkers."

Castillo's bill has support

If undocumented residents are convicted of a crime, they should not have access to the $50 million in legal aid the governor has made available.

"The Legislature had a chance to fix this - we gave them that chance, and they refused," Castillo said in a press release. "Now, we're doing what Newsom himself asked for: Ensuring that taxpayer dollars are never used to shield dangerous criminals from the consequences of their actions."

This is a bill the Legislature should approve and send to the governor's desk for signature. He asked for it, and pro-immigrant individuals have tacitly endorsed it.

Juan Esparza Loera

Copyright (c) 2025 The Fresno Bee

- **Citation (apa Style)**
  Esparza Loera, J. (2025, March 12). Newsom's $50 million legal aid should bar undocumented criminals. This bill codifies it | Opinion. *Fresno Bee, The: Web Edition Articles (CA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19F47C16B13BBE98.